

The attached PDF file summarizes our view (Mary Hain's and mine) of the possible outcomes of taking the PX investigation the FERC route or the PX Settlement route. To make a commercial decision, we need to know what jurisdiction we would like this case to be settled in and the rules of engagement in each jurisdiction. For example, if we do a FERC filing we must meet a "just and reasonable" standard while if we appeal an ADR decision to FERC we have to prove that the ADR finding was "Arbitrary and Capricious." Please review the attached file and let me know if any of it is wrong. Personally, I need more input from legal and regulatory on what our odds of winning our in the different jurisdictions before I can make an informed decision.